

Court No. - 1

Case :- WRIT - C No. - 23880 of 2019

Petitioner :- Babli Jain

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- K.K. Tripathi

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Heard Sri K.K.Tripathi, learned counsel for the petitioner, Sri Dhiraj Kumar, holding brief of Sri Baleshwar Chaturvedi, learned counsel for the Electricity Department and learned Standing Counsel for the State and perused the record.

This writ petition has been filed with the following prayers:-

"A. Issue a writ, order or direction in the nature of mandamus commanding the respondent Nos. 1 to 4 not to provide any new power connection in House No.409 Nai Basti Firozabad, District Firozabad without consent of the petitioner.

B. Issue a writ, order or direction in the nature of mandamus commanding the respondent nos. 2 to 4 not to provide new connection in House No.409 Nai Basti, District Firozabad which is in the ownership and possession of the petitioner for the last 10 years."

The petitioner has come up before this Court for decision on her representation dated 16th July, 2019 in which she has raised apprehension that the House No.409 Nai Basti, District Firozabad that belongs to her and contesting respondents are trying to get the new connection and thereby trying to create liability upon her.

We do not find nor the documents reveal any such apprehension of the petitioner to be true one. Hence, we are of the considered opinion that the Electricity Supply Code, 2005 takes full care in respect of such matters. It is possible that an authorized occupant applies for fresh connection/new connection but in such a situation indemnity bond is required to be submitted. We are of the opinion that the Electricity Department will take care of it. We leave it open to the petitioner to raise such a plea when such a connection is granted.

Petition is consigned to record.

(Ajit Kumar,J.) (Ramesh Sinha, J.)

Order Date :- 5.8.2019/NS